

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 08/28/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the Court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel/parties intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
7	30-2026-01570049 Rancho Tierra Apartments LLC vs. De Olivas	Pending; check back later
10	30-2025-01473837 Pahu vs. Crawford	The Court has read and considered the Defendant's Motion for Summary Judgment (ROA 44). The Court takes Judicial Notice of the Complaint (ROA 2). The Court GRANTS the Defendant's Motion for Summary Judgment. No issues of triable fact or law remain, as the Three-Day Notice to Pay Rent or Quit attached to the Complaint is fatally defective because it lacks the required statutory language under California Code of Civil Procedure section 1161(2). A Notice to Pay or Quit cannot be amended. The Court of Appeal held that when a plaintiff fails to strictly comply with the requirement under California Code of Civil Procedure section 1161(2), a plaintiff fails to state a cause of action for unlawful detainer. (<i>Eshagian v. Cepeda</i> (2025) 112 Cal.App. 5th 433, 457-459.)

		As possession of the property is no longer at issue, the Court finds the Defendant is the prevailing party in this matter. The Court orders the Court Clerk to seal the record as the Defendant is the prevailing party in this matter. The Defendant is ordered to provide notice of the Court's ruling.
12	30-2026-01575211 Main Street Management, Inc vs. Rios	<u>Motion to Dismiss</u> The Court has read and considered the Defendant's Motion to Dismiss (ROA 19) A Motion to Dismiss is an improper responsive pleading after service of a complaint in an unlawful detainer action. Pursuant to California Code of Civil Procedure § 1170(a), the Defendant needs to file a motion to quash service of summons, a motion to strike, a demurrer to the complaint, or an answer. The Defendant did not allege defective service of summons in the Motion to Dismiss and failed to file a Motion to Quash service within the statutory period. The Defendant filed this Motion on June 17, 2026 and chose to calendar it for August 28, 2026, more than 2 months after filing it and well outside the statutory time period for unlawful detainers. Furthermore, Defendant does not allege that the Complaint is not facially sufficient for an unlawful detainer complaint. Defendant's sole contention for the basis to dismiss the complaint is that Defendant has experienced economic hardship and would like to remain in the property. The Court DENIES the Motion to Dismiss. As such, the Court orders the Defendant to file an Answer within 3 calendar days. Plaintiff is ordered to provide notice of the Court's ruling. <u>Discovery Motions</u> The Court has read and considered the Plaintiff's Motion to Compel Production of Documents, Set One, and Request for Monetary Sanctions Against Javier Rios (ROA 39), Motion to Compel Responses to Interrogatories and Request for Monetary Sanctions Against Javier Rios (ROA 32), and Motion for Order Deeming Matters Admitted and Request for Monetary Sanctions Against Javier Rios (ROA 26). The Plaintiff's Motion to Compel Responses to Interrogatories is GRANTED. Defendant is hereby ordered to serve full and complete verified responses, without objection to the Request for Interrogatories, within 5 days of service of notice hereto. IT IS ORDERED that the Plaintiff's Motion for Order Deeming Matters Admitted be and hereby is granted and that the truth of all specified matters, and the genuineness of all specified documents, in the Requests for Admissions, propounded by Plaintiff and served on Defendant on July 2, 2026, be deemed admitted.